

## 24STCV03131 24STCV03131

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Case Number: 24STCV03131 Hearing Date: September 10, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 09/10/2026

CASE NUMBER: 24STCV03131

CASE NAME: J. vs LOS ANGELES

UNIFIED SCHOOL ...

MOVING PARTY: Defendant SOUTHERN CALIFORNIA

VOLLEYBALL ASSOCIATION

OPPOSING PARTY: Plaintiff J.

Joinder

to Opposition filed by Defendant Los Angeles Unified School District ("LAUSD")

followed by their own Opp. Brief

PROCEEDING: MOTION FOR SUMMARY JUDGMENT

RULING SUMMARY: Southern

California Volleyball Association's Motion for Summary Judgment is DENIED.

Southern

California Volleyball Association's Motion for Summary Adjudication is GRANTED

as to the Sixth Cause of Action (Intentional Infliction of Emotional Distress);

and DENIED as to the Negligence-Based Causes of Action (First Cause of

Action (Negligent Hiring, Supervision, and Retention of An Unfit Employee),

Third Cause of Action (Negligent Failure to Warn, Train, or Educate), Fourth

Cause of Action (Negligent Supervision of a Minor), Second Cause of Action (and

Fifth Cause of Action (Negligence)), Second Cause of Action (Breach of

Mandatory Duty: Failure to Report Suspected Child Abuse), and Seventh Cause of

Action (Sexual Harassment under Civ. Code § 51.9 et seq.).

Background

On February 6, 2024, J ("Plaintiff") filed a Complaint

against defendants Los Angeles Unified School District ("LAUSD"), Jerome A.

Lowe ("Lowe"), and Does 1 through 50 for damages arising from alleged childhood

sexual abuse. Plaintiff pleads causes of

action for (1) Negligent Hiring, Supervision, and Retention of an Unfit Employee

against LAUSD; (2) Breach of Mandatory Duty: Failure to Report Suspected Child Abuse

against all defendants; (3) Negligent Failure to Warn, Train, or Educate

against LAUSD; (4) Negligent Supervision of a Minor against all defendants; (5)

Negligence against all defendants; (6) Intentional Infliction of Emotional Distress

("IIED") against Lowe; and (7) Sexual Harassment Under Civil Code §§ 51.9 et seq. against Lowe.

On May 8, 2024, LAUSD filed its Answer and a Cross-Complaint against, Lowe alleging causes of action for (1) Equitable Indemnity, (2) Contribution, and (3) Declaratory Relief.

On August 9, 2024, LAUSD amended fictitious name of Roe 1 to Southern California Volleyball Association ("SCVA"). All causes of action in the Cross-Complaint are directed to Lowe and SCVA. On October 16, 2024, SCVA filed its Answer to LAUSD's Cross-Complaint.

On April 30, 2025, LAUSD amended fictitious names of Roe 2 to USA Volleyball ("USAV") and Roe 3 to Unleashed, a USAV Member Club ("Unleashed").

On November 24, 2025, Plaintiffs amended the fictitious names of Doe 1 to SCVA, Doe 2 to USAV, and Doe 3 Unleashed. All causes of action in the SAC are directed at SCVA, USAV, and Unleashed.

On January 21, 2026, SCVA filed its Answer to the Complaint.

On January 28, 2026, the parties entered a stipulation for protective order regarding confidentiality.

On February 18, 2026, SCVA filed its Motion for Summary Judgment, or in the alternative, Summary Adjudication. On May 14, 2026, Plaintiffs

filed their Opposition, and LAUSD filed a Notice of Joinder and its own

Opposition. On May 22, 2026, SCVA filed

its Reply.

MOTION FOR

SUMMARY JUDGMENT, or in the alternative, summary adjudication

LEGAL

STANDARD – SUMMARY JUDGMENT/SUMMARY ADJUDICATION

The

function of a motion for summary judgment or adjudication is to allow a

determination as to whether an opposing party cannot show evidentiary support

for a pleading or claim and to enable an order of summary dismissal without the

need for trial. (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th

826, 843.) Code Civ. Proc., §437c(c) “requires the trial judge to grant summary

judgment if all the evidence submitted, and ‘all inferences reasonably

deducible from the evidence’ and uncontradicted by other inferences or

evidence, show that there is no triable issue as to any material fact and that

the moving party is entitled to judgment as a matter of law.” (Adler v.

Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of

the pleadings in a motion for summary judgment is to delimit the scope of the

issues; the function of the affidavits or declarations is to disclose whether

there is any triable issue of fact within the issues delimited by the

pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67

[citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367,

381-382].) ~~~~~

As to

each claim as framed by the complaint, the party moving for summary judgment

must satisfy the initial burden of proof by presenting facts to negate an

essential element, or to establish a defense. (Code Civ. Proc. §437c(p)(2); Scalf v.

D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally

construe the evidence in support of the party opposing summary judgment and

resolve doubts concerning the evidence in favor of that party.” (Dore v.

Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) ~~~~~

Once

the defendant has met that burden, the burden shifts to the opposing party to

show that a triable issue of one or more material facts exists as to that cause

of action or a defense thereto. To establish a triable issue of material fact,

the party opposing the motion must produce substantial responsive evidence. (Sangster

v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

## DISCUSSION

A.

A triable issue of material fact

exists as to the Negligence Causes of Action – First Cause of Action (Negligent

Hiring, Supervision, and Retention of An Unfit Employee), Fourth Cause of Action

(Negligent Supervision of a Minor), and Fifth Cause of Action (Negligence).

SCVA asserts that (1) there is

generally no duty to protect others from third-party conduct; (2) the

special relationship doctrine is an exception to this rule; (3) the special

relationship doctrine requires a foreseeability analysis; and (4) the

foreseeability analysis is measured by what the defendant actually knew. SCVA argues that it did not breach any duty or

ratify any improper conduct as Lowe was not SCVA's agent or employee and,

assuming that he was, SCVA was never in the custody, care, and control of

students, including Plaintiff (SCVA's UMF No. 13); all volleyball events

attended by Plaintiff had adequate staffing and/or security (id., No.

14); SCVA is unaware of any improper conduct by Lowe at any SCVA event (id.,

No. 15); SCVA conducted a background check on Lowe which he passed (id.,

No. 5); Lowe had required coaching certifications prior to becoming a member (ibid.);

Lowe agreed to a code of ethics (id., No. 6); SCVA did not receive any

complaints or concerns about Lowe until it received notice of a Los Angeles

Police Department ("LAPD") investigation (id., Nos. 8-11); and Lowe has

not attended a SCVA event or been an SCVA member since. (Id., No. 11.)

“The elements of breach of duty

and causation are ordinarily questions of fact for the jury’s determination.” (Hernandez

v. Jensen (2021) 61 Cal.App.5th 1056, 1064.) “[I]f the circumstances permit

a reasonable doubt whether the defendant’s conduct violates the standard of due

care, the doubt must be resolved by the jury as an issue of fact rather than of

law by the court.” (Musgrove v. Ambrose Properties (1978) 87 Cal.App.3d

44, 53.) And the court may only decide causation as a matter of law where there

is no reasonable dispute. (Constance B. v. State of California (1986)

178 Cal.App.3d 200, 207.)

“[A] special relationship between

the defendant and the dangerous third party is one that ‘entails an ability to

control [the third party’s] conduct.” (Safechuck v. MJJ Productions, Inc.

(2023) 94 Cal.App.5th 675, 691–692.) “[I]t is the right to control the means

and manner in which the result is achieved that is significant in determining

whether a principal-agency relationship exists.’ [Citation.]” (People v. JTH

Tax, Inc. (2013) 212 Cal.App.4th 1219, 1242.) “It is not essential that the

right of control be exercised or that there be actual supervision of the work

of the agent; the existence of the right establishes the relationship.” (Ibid.)

“‘The key in each [special relationship] is that the defendant’s relationship

with ... the tortfeasor ... places the defendant in the best position to

protect against the risk of harm.' [Citations.] Thus, the defendant's ability to control the person who caused the harm must be such that 'if exercised, [it] would meaningfully reduce the risk of the harm that actually occurred.' [Citations.]" (Barenborg v. Sigma Alpha Epsilon Fraternity (2019) 33 Cal.App.5th 70, 78 [holding that national fraternities have no duty to control local chapters or their members.]) "Examples of special relationships with the persons posing the risks include 'a parent with dependent children,' 'a custodian with those in its custody,' and 'an employer with employees when the employment facilitates [an] employee's causing harm to third parties.'" (Id., at 77–78 [quoting Rest.3d Torts, Liability for Physical and Emotional Harm, § 41].)¿

The adequacy of supervision is generally a question of fact for determination by the jury. (Rodrigues v. San Jose Unified School Dist. (1958) 157 Cal.App.2d 842, 848.) And "foreseeability in evaluating negligence and causation requires a 'more focused, fact-specific' inquiry that takes into account a particular plaintiff's injuries and the particular defendant's conduct [Citations.]." (Laabs v. Southern California Edison Co. (2009) 175 Cal.App.4th 1260, 1273; see also Ballard v. Uribe (1986) 41 Cal.3d 564, 572, fn. 6 ["[T]he jury may consider the likelihood or foreseeability of injury in determining whether, in

fact, the particular defendant's conduct was negligent in the first place.

Second, foreseeability may be relevant to the jury's determination of whether the defendant's negligence was a proximate or legal cause of the plaintiff's injury."].)

An independent intervening act is

a superseding cause relieving the actor of liability for [their] negligence

only if the intervening act is highly unusual or extraordinary and hence not

reasonably foreseeable. [Citation.] Reasonable foreseeability in this context

is a question for the trier of fact." (Cline v. Watkins (1977) 66

Cal.App.3d 174, 178.) The existence of a superseding cause is an affirmative

defense that SCVA must establish. (See Green v. Healthcare Services, Inc. (2021)

68 Cal.App.5th 407, 415.)

SCVA does not deny that it has a

special relationship with Plaintiff, but argues that the facts, taken as a

whole, show that SCVA did not have the right to control the means and manner in

which Lowe conducted his responsibilities. All facts presented by SVCA are

supported by the Declaration of Shannon Davenport ("Davenport"), the Director

of Special Operations for SCVA. As this affirmative evidence weighs against the

existence of an employment or agency relationship between SCVA and Lowe, the

Court finds SCVA has met its moving burden as to the non-existence of a special

relationship between SCVA and Plaintiff. Thus, the burden shifts to Plaintiff

to raise a triable issue of material facts.

Plaintiff contends that SCVA has

conceded a special relationship and, as such, the factors stated in Rowland

v. Christian (1968) 69 Cal. 2d 108, must be addressed. (J. Opp., at p.10.) Plaintiff

argues that an application of the Rowland factors supports the assertion

that SCVA owed a duty to Plaintiff: (1) the first Rowland factor,

foreseeability, is supported by Brown v. USA Taekwondo (2019) 40

Cal.App.5th 107 ("Brown"), as it was readily foreseeable that youth

athletes might be sexually molested by their coaches regardless of whether

there existed knowledge of any prior sexual misconduct by Lowe or any other

SCVA affiliate; (2) the second Rowland factor, degree of certainty, is

supported by Juarez v. Boy Scouts of Am., Inc. (2000) 81 Cal. App. 4th

377 ("Juarez") which held that "[t]he significant emotional trauma

caused by childhood sexual abuse, with its related societal costs, is well

documented[;]" and (3) the third factor, closeness of connection between a

defendant's conduct and the injury suffered, supports a duty as SCVA could have

reduced the risk of Plaintiff being abused by limiting inappropriate contact

between coaches and athletes.

Plaintiff disputes that the

evidence is sufficient to carry SCVA's burden for the following reasons: SCVA undertook approval of all coaches and chaperones of SCVA member teams, including Lowe (J.'s UMF, Nos. 17-18); SCVA admits that youth team players did not receive training regarding the prevention of sexual assault and harassment and SCVA did not have a sexual harassment prevention policy (id., No. 19); SCVA admits it did not provide employee or staff training at tournaments in recognizing suspected child abuse (id., No. 20); and SCVA admits it did not monitor its teams' lodging arrangements (id., No. 21).

Plaintiff also asserts that SCVA failed to provide adequate training to coaches, staff, minor athletes, and their families. (Id., Nos. 28-29.) Specifically, as to coaches, Plaintiff asserts that SCVA failed to provide training on the dimensions of sexual harassment and boundary crossing and how to identify and respond to such harassment. (Id., No. 28.) SCVA failed to define appropriate coaching behaviors towards minor athletes, to identify boundary crossing and sexual misconduct red flags, to clarify such conduct is prohibited, and to teach reporting protocols. (Id., No. 29.)

Plaintiff has offered an expert opinion on whether SCVA breached a duty owed to Plaintiff. The question of duty is a legal question, and an expert may not opine on whether a duty exists. (*Asplund v. Selected Investments in Financial Equities, Inc.* (2000) 86 Cal.App.4th

26, 50.) The Court does not consider the opinion of Plaintiff's expert Charol

Shakeshaft ("Shakeshaft") for the purpose of duty. As taken from Plaintiff's

material fact Numbers 28 and 29, the Court interprets Shakeshaft's declaration

as discussing measures that SCVA could have taken to meet its alleged duty of

care to Plaintiff.

As noted above, when determining

whether a duty exists, courts must look to "pertinent factors," commonly known

as the Rowland factors, including "foreseeability of harm to the

plaintiff, the degree of certainty that the plaintiff suffered injury, the

closeness of the connection between the defendant's conduct and the injury

suffered, the moral blame attached to the defendant's conduct, the policy of

preventing future harm, the extent of the burden to the defendant and

consequences to the community of imposing a duty to exercise care with

resulting liability for breach, and the availability, cost, and prevalence of

insurance for the risk involved." (Rowland, *supra*, 69 Cal. 2d

108, 112-13 [Partially superseded by statute on a different issue as stated in Calvillo-Silva

v. Home Grocery (1998) 19 Cal.4th 714, 722; disapproved on a different

issue in Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 853.

See also Smith v. Freund (2011) 192 Cal. App. 4th 466, 473-74

[maintaining that the Rowland factors are still the factors for

determination of duty].)

In regard to foreseeability,

“while it is the province of the jury, as trier of fact, to determine whether

an unreasonable risk of harm was foreseeable under the particular facts of a

given case, the...court must still decide as a matter of law whether there was a

duty in the first place, even if that determination includes a consideration of

foreseeability. [Citation.]’ [Citation.]” (M. W. v. Panama Buena Vista Union

School Dist. (2003) 110 Cal. App. 4th 508, 516 (“M.W.”) [citing

Romero v. Superior Court (2001) 89 Cal.App.4th 1068, 1078].) “The existence of

a duty and foreseeability, when analyzed to determine the scope of a duty, is a

question of law. . .” (Wiener v. Southcoast Childcare Centers, Inc.

(2004) 32 Cal. 4th 1138, 1146 [cited in M.W., supra, Cal.App.4th

508, 516].) “[T]he analysis of foreseeability for purposes of assessing the

existence or scope of a duty is different, and more general, than it is for

assessing whether any such duty was breached or whether a breach caused a

plaintiff’s injuries. “[I]n analyzing duty, the court’s task ““is not to

decide whether a particular plaintiff’s injury was reasonably foreseeable in

light of a particular defendant’s conduct, but rather to evaluate more

generally whether the category of negligent conduct at issue is sufficiently

likely to result in the kind of harm experienced that liability may

appropriately be imposed on the negligent party.'"" (Staats v. Vintner's

Golf Club, LLC (2018) 25 Cal. App. 5th 826, 837 [citing Laabs, supra,

175 Cal.App.4th 1260, 1272–1273].)

SCVA concedes that there is a

special relationship between itself and Plaintiff. Plaintiff has submitted

evidence that Lowe's membership as a coach was controlled by SCVA. (See Pl.'s

UMF No. 12; Pl.'s Volume of Exs., Ex. 2, Deposition of Davenport, Volume II 154:

5-18; 158:21-159:4; 156: 10-17].) Thus, as SCVA has conceded a special

relationship exists and Plaintiff has provided evidence raising an issue as SCVA's

control over Lowe, the Court determines that a triable issue of fact exists as

to whether SCVA had a duty to Plaintiffs. Once such a duty is determined to exist, the

Court must consult the Rowland factors to determine whether relevant

policy considerations counsel limiting that duty. (See Doe v. Lawndale

Elementary School Dist. (2021) 72 Cal.App.5th 113, 127.)

Applied here, the question

regarding foreseeability is whether it is reasonably foreseeable that

organizations or entities that provide services primarily or exclusively for

children have employees who may sexually abuse a child if the organization

fails to take reasonable measures to prevent the abuse. (Doe v. United

States Youth Soccer Assn., Inc. (2017) 8 Cal.App.5th 1118 ("United

States Youth Soccer Assn.”) In *United States Youth Soccer Assn.*,

the Court provides a *Rowland* analysis that is nearly identical to this

case. The Court in that case held that the soccer organization directed to

minors had a duty to require and conduct criminal background checks of

defendants' employees and volunteers who had contact with children in their

programs and failed to do so. (*Id.*, at 1137-38.) Here, SCVA conducted a

background check, but, according to the Davenport Declaration submitted by

SCVA, the background check did not show information other than certifications.

(Davenport Decl., ¶ 8, Ex. 2.) The other *Rowland* factors support this

Court's conclusion: Plaintiff suffered injury, the connection between the

injury and SCVA's background check was close, and preventing harm to children

is a paramount goal of our society. (*United States Youth Soccer Assn.*, *supra*,

8 Cal.App.5th at 1138.) Thus, Plaintiff has met her burden to show that a

triable issue of one or more material facts exists as to that cause of action

or a defense thereto as to the negligence-based causes of action within the Complaint.

LAUSD's objections to SCVA's

evidence (i.e., statements within Davenport's Declaration) are

overruled.

For the reasons explained above, having found that disputed

issues of material fact exist, the Motion for Summary Judgment is DENIED. For

the same reasons, the Motion for Summary Adjudication as to the Negligence-Based Actions (First Cause of Action (Negligent Hiring, Supervision, and Retention of An Unfit Employee), Third Cause of Action (Negligent Failure to Warn, Train, or Educate), Fourth Cause of Action (Negligent Supervision of a Minor), and Fifth Cause of Action (Negligence) is DENIED.

#### B. SCVA

does not meet its initial burden regarding the Second Cause of Action (Breach of Mandatory Duty: Failure to Report Suspected Child

Abuse).

SCVA argues that it had no duty to

report under the California Child Abuse and Neglect Reporting Act ("CANRA") as

it did not receive any complaint concerning or relating to Lowe until it

received notice of a Los Angeles Police Department ("LAPD") investigation (SCVA's

UMF, at Nos. 8-11) and, upon receiving this notice, reported Lowe to the U.S.

Center for Safe Sport per mandatory reporting requirements on October 30, 2017

(*id.*, at No. 10). SCVA contends that it did not fail to report.

CANRA (codified under Pen. Code §

11164 et seq.) "was enacted to protect children from abuse and neglect through

a comprehensive reporting scheme aimed at identifying and protecting children

who are being abused or neglected." (*Holman v. County of Butte* (2025)

111 Cal.App.5th 177, 182 ("*Holman*").) CANRA requires a mandated reporter

“to make a report to a law enforcement agency or a county welfare department

‘whenever the mandated reporter, in his or her professional capacity or within

the scope of his or her employment, has knowledge of or observes a child whom

the mandated reporter knows or reasonably suspects has been the victim of child

abuse or neglect.” (B.H. v. County of San Bernardino (2015) 62 Cal.4th

168, 186 (“B.H.”) [subsequent rehearing unpublished]; see Pen.

Code, § 11165.7.) Failure to make the required report is a misdemeanor. (Pen.

Code, § 11166, subd. (c).) In addition, an injured minor may bring a civil

action where “a breach of the mandated reporter’s duty to report child abuse”

causes the minor’s injuries. (B.H., supra, 62 Cal.4th at p. 188,

fn. 6; accord, All Angels Preschool/Daycare v. County of Merced (2011)

197 Cal.App.4th 394, 405; see Alejo v. City of Alhambra (1999) 75

Cal.App.4th 1180, 1188 [89 Cal. Rptr. 2d 768] [“allegations [a] defendant

failed to make the report required by the statute support[]” a cause of action

“under the doctrine of negligence per se”, disapproved on another ground in B.H.,

supra, at p. 188, fn. 6].) CANRA employs an objective standard for

evaluating the reasonableness of a mandated reporter’s suspicion. Penal Code § 11166(a)(1)

states “‘reasonable suspicion’ means that it is objectively reasonable for a

person to entertain a suspicion, based upon facts that could cause a reasonable

person in a like position, drawing, when appropriate, on the person’s training

and experience, to suspect child abuse or neglect.” (See also B.H., supra, 62 Cal.4th at 193 [“Mandated reporters have mandatory reporting duties which are governed by an objective standard.”].)

Here, the alleged wrongful act is SCVA’s failure to report suspect child abuse to a law enforcement agency or child protective services as required. (Complaint ¶ 30.) SCVA’s evidence shows that, upon receiving information from the LAPD of an investigation of Lowe for sexual relationships with minor females, SCVA reported the incident to the U.S. Center for SafeSport. (SCVA’s UMF Nos. 9-10; Davenport Decl. ¶¶ 12-13, Ex. 5.)

SCVA does not offer evidence, however, that the U.S. Center for SafeSport is a law enforcement agency, a county welfare department, or a proper agency under CANRA. (See Pen. Code § 1165.9.)

The attached report to the U.S. Center for SafeSport states: “If you are a Covered Adult (an individual over the age of 18 who is subject to SafeSport policies), you are also required to report all instances of possible child abuse and/or neglect to appropriate law enforcement.” (Davenport Decl., at ¶ 13, Ex. 5.)

Without this evidence, SCVA does not meet its initial burden to negate an essential element, or to establish a defense as to the CANRA claim. Because SCVA has not met its initial burden on this claim, the Court may and does deny summary adjudication of this cause of

action notwithstanding Plaintiff's failure to discuss the CANRA claim in

Opposition.

The Motion for Summary

Adjudication as to the Second Cause of Action (Breach of Mandatory Duty:

Failure to Report Suspected Child Abuse) is DENIED.

C.

The Sixth Cause of Action (IIED)

is limited by the pleadings.

As noted above, SCVA asserts that

it had no notice of facts suggesting that Lowe would sexually assault a player.

Therefore, SCVA argues that no reasonable trier of fact could find that SCVA

acted with intent to inflict injury on Plaintiff or that SCVA's personnel

engaged in conduct that was beyond the bounds of what is usually tolerated in a

civilized community.

"A cause of action for intentional

infliction of emotional distress exists when there is '(1) extreme and

outrageous conduct by the defendant with the intention of causing, or reckless

disregard of the probability of causing, emotional distress; (2) the

plaintiff's suffering severe or extreme emotional distress; and (3) actual and

proximate causation of the emotional distress by the defendant's outrageous

conduct.' A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.) "[T]he trial court initially determines whether a defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery. Where reasonable men can differ, the jury determines whether the conduct has been extreme and outrageous to result in liability. Otherwise stated, the court determines whether severe emotional distress can be found; the jury determines whether on the evidence it has, in fact, existed." (Plotnik v. Meihaus (2012) 208 Cal.App.4th 1590, 1614.)

Plaintiff alleges the following

conduct in connection with the IIED claim:

Defendants Jerome A. Lowe; and DOES 1 through 50, inclusive, and each of them, each exhibited conduct that was done with reckless disregard for the rights of Plaintiff. Defendant Lowe knew that Plaintiff was a minor, that she was unable to defend herself, and that Plaintiff relied on Lowe to protect her from such harmful acts. Defendant Lowe knew that Plaintiff would be susceptible to his suggestion due to her age and his superior position of power over Plaintiff.

The conduct of Defendant Jerome A. Lowe was intentional and done for the purpose of causing Plaintiff to suffer from severe mental anguish and severe and emotional distress.

(Complaint ¶¶ 62-63.)

“The

function of the pleadings in a motion for summary judgment is to delimit the

scope of the issues; the function of the affidavits or declarations is to

disclose whether there is any triable issue of fact within the issues delimited

by the pleadings.”<sup>2</sup> (Juge<sup>3</sup> v. County of Sacramento<sup>4</sup> (1993) 12 Cal.App.4th

59, 67 [citing<sup>5</sup> FPI Development, Inc. v. Nakashima<sup>6</sup> (1991) 231 Cal. App.

3d 367, 381-382].) As pled, there is no conduct by SCVA to form the basis of

the IIED claim.

Because

Plaintiff has not alleged conduct by SCVA in the IIED cause of action, SCVA’s position

that it did not engage in any conduct that could constitute IIED is sufficient

to meet its initial burden. The burden shifts to Plaintiff.

Plaintiff

argues that SCVA acted with a reckless disregard when it failed to protect

Plaintiff

from

sexual abuse. But Plaintiff has not made this allegation in the Complaint's sixth cause of action. The claim cannot be considered as the issues for the Motion for Summary Judgment, or in the alternative, Summary Adjudication, are delimited by the pleadings.

For the reasons explained above, the Court GRANTS the Motion for Summary Adjudication as to the Sixth Cause of Action.

D.

SCVA fails to meet its initial burden as to the Seventh Cause of Action (Sexual Harassment under Civ. Code § 51.9 et seq.)

SCVA argues that there is no evidence that it, or any of its agents/employees, engaged in sexual harassment.

SCVA further argues that it had no notice of facts suggesting Lowe would sexually assault a player prior to any of the alleged instances of abuse claimed herein.

Plaintiff alleges the following

conduct as to the Sexual Harassment claim:

Defendant Jerome A. Lowe made sexual advances and/or engaged in other conduct of a sexual nature or of a hostile nature based on gender that

was unwelcome and pervasive or severe.

Defendants DOES 1 through 50, inclusive, and each of them,

knew or should have known of the misconduct and sexually predatory behavior of

Jerome Lowe directed at young children at the school.

Despite having knowledge of the sexual harassment of Jerome

Lowe, Defendants DOES 1 through 50, inclusive, and each of them, acted with

deliberate indifference and approved Jerome Lowe's conduct by failing to take

any action to control, curb, and/or prevent that conduct.

(Complaint ¶¶ 70-72.)

Unlike the claim for IIED, Plaintiff

alleges in the seventh cause of action that SCVA, initially sued as a Doe

Defendant, (1) knew or should have known of the misconduct and sexually

predatory behavior of Jerome Lowe directed at young children at the school; and

(2) acted with deliberate indifference and approved Jerome Lowe's conduct by

failing to take any action to control, curb, and/or prevent that conduct.

"[T]he Legislature intended

to conform Civil Code section 51.9 to the California and federal laws

pertaining to sexual harassment in the workplace." (Hughes v. Pair

(2009) 46 Cal.4th 1035, 1048.) As with laws pertaining to sexual harassment in

the workplace, a corporation can be held liable for sexual harassment under

section 51.9. (C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th

1094, 1110.) "[B]y declaring a policy against sexual harassment in the

workplace, the Legislature has indicated such conduct is foreseeable." (Capitol

City Foods, Inc. v. Superior Court (1992) 5 Cal.App.4th 1042, 1048.)

A disputed issue of material act

is present as to the foreseeability of Lowe's act of sexual misconduct during

his time as a member and coach of SCVA. And, as previously discussed, SCVA had

a duty of care to Plaintiff to take all reasonable steps to prevent such an act

from occurring.

Accordingly,

SCVA does not meet its initial burden to negate an element or establish a defense

thereto for the sexual harassment claim. The Motion for Summary Adjudication as

to the Seventh Cause of Action is DENIED.

Conclusion

Southern California Volleyball Association's Motion for

Summary Judgment is DENIED.

Southern California Volleyball Association's Motion for

Summary Adjudication is GRANTED as to the Sixth Cause of Action (Intentional

Infliction of Emotional Distress); and DENIED as to the Negligence-Based Causes

of Action (First Cause of Action (Negligent Hiring, Supervision, and

Retention of An Unfit Employee), Third Cause of Action (Negligent Failure to Warn, Train, or Educate), Fourth Cause of Action (Negligent Supervision of a Minor), Second Cause of Action (and Fifth Cause of Action (Negligence)), Second Cause of Action (Breach of Mandatory Duty: Failure to Report Suspected Child Abuse), and Seventh Cause of Action (Sexual Harassment under Civ. Code § 51.9 et seq.).

Date: 09/10/2026 \_\_\_\_\_

William

E. Weinberger

Judge,

Los Angeles Superior Court